

§ 216-c. Preparation of petitions. (a) Whenever a petitioner is not represented by counsel, any person who assists in the preparation of a petition shall include all allegations presented by the petitioner.

(b) No clerk of the court or probation officer may prevent any person who wishes to file a petition from having such petition filed with the court immediately.

(c) If there is a question regarding whether or not the family court has jurisdiction of the matter, the petition shall be prepared and the clerk shall file the petition and refer the petition to the court for determination of all issues including the jurisdictional question.

(d) This section shall not be applicable to juvenile delinquency proceedings.